

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
FELIX ROSARIO,

Index No.:

Purchased:

Plaintiff,

-against-

SUMMONS

CITY OF NEW YORK, individually and in their capacities
as Detectives, ROBERTO TORIBIO, ANTHONY
DISIMONE, and JOHN or JANE DOE 1-10,

Plaintiff designates **Bronx County** as
the venue for trial by jury.

Defendants.
-----X

The basis for venue is where the tort
arose.

TO THE ABOVE-NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED, to answer the complaint in this action and to serve
a copy of your answer, or if the complaint is not served with this summons, to serve a notice of
appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons,
exclusive of the day of service (or within 30 days after the service is complete if this summons is
not personally delivered to you within the State of New York); and in case of your failure to
appear or answer, judgment will be taken against you by default for the relief demanded in the
complaint.

Dated: Bayside, New York
December 27, 2019



SIM & DEPAOLA, LLP

BY: Peter Sim, Esq.

Attorneys for Plaintiff

42-40 Bell Boulevard, Suite 201

Bayside, New York 11361

(718) 281-0400

TO: CORPORATION COUNSEL OF THE
CITY OF NEW YORK
100 Church Street
New York, New York 10007

Detective ROBERTO TORIBIO
Shield # 3100, Tax Id 948148
At Narcotics Borough of Bronx
500 Abbott Street
Bronx, New York 10470

Detective ANTHONY DISIMONE
Shield #000340, Tax Id 918874
At Narcotics Borough of Bronx
500 Abbott Street
Bronx, New York 10470

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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FELIX ROSARIO,

Plaintiff,

Index No.:

-against-

CITY OF NEW YORK, individually and in their capacities
as Detectives, ROBERTO TORIBIO, ANTHONY
DISIMONE, and JOHN or JANE DOE 1-10,

VERIFIED COMPLAINT

Defendants.
-----X

Plaintiff, FELIX ROSARIO, by his attorneys, Sim & DePaola, LLP, for his complaint
against the above Defendants, alleges as follows:

1. The claim arises from a December 4, 2018 incident in which Defendants, acting under color of state law, unlawfully assaulted, arrested and detained Plaintiff. As a result, Plaintiff was deprived of his liberty and suffered physical injuries. Plaintiff was incarcerated over the course of three (3) days, until the he was released on December 6, 2018.
2. Plaintiff seeks monetary damages (compensatory and punitive) against Defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court deems just and proper.

PARTIES

3. Plaintiff FELIX ROSARIO ("Plaintiff") resides at 524 West 169th Street, Apt. 44, New York County, State of New York.
4. The Defendant City of New York (or "the City") is a municipal corporation organized under the laws of the State of New York.

5. At all times relevant hereto, Defendant City, acting through the New York City Police Department (or "NYPD") was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, including police officers, detectives and supervisory officers as well as the individually named Defendants herein.
6. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.
7. Defendant ROBERTO TORIBIO was, at all times here relevant, a detective employed by the NYPD and as such was acting in the capacity of an agent, servant, and employee of the City of New York. Defendant TORIBIO was, at the times relevant herein, a detective under Shield #3100, Tax ID # 948148, located at the Narcotics Borough of the Bronx, 500 Abbott Street, Bronx, New York 10470. Defendant TORIBIO is being sued in his individual and official capacities.
8. Defendant ANTHONY DISIMONE was, at all times here relevant, a detective employed by the NYPD and as such was acting in the capacity of an agent, servant, and employee of the City of New York. Defendant DISIMONE was, at the times relevant herein, a detective under Shield # 340, Tax ID # 918874, located at the Narcotics Borough of the Bronx, 500 Abbott Street, Bronx, New York 10470. Defendant DISIMONE is being sued in his individual and official capacities.
9. At all times relevant Defendants John and Jane Doe 1-10 were police officers, detectives, supervisors, policy makers and/or officials employed by the NYPD. At

this time, Plaintiff does not know the true names and/or tax registration numbers of Defendants John and Jane Doe 1-10 but is within knowledge of the Defendants.

10. At all times relevant herein, Defendants John and Jane Doe 1-10 were acting as agents, servants and employees of the City of New York, the NYPD. Defendants John and Jane Doe 1-10 are sued in their individual and official capacities.

11. At all times here mentioned Defendants, including TORIBIO, DISIMONE, and John or Jane Doe 1-10 were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

12. Within 90 days of accrual dates for these claims, Plaintiff timely filed a written notice of claim with the New York City Office of the Comptroller.

13. Over 30 days have elapsed since the filing of those notices, and this matter has not been settled or otherwise disposed of.

14. Plaintiff has complied with municipal Defendant's request for an oral examination pursuant to Section 50-H of the New York General Municipal Law.

15. This action has been commenced within one year and ninety days from the relevant accrual dates.

FACTUAL CHARGES

16. On December 4, 2018, at approximately 3:00 P.M., Plaintiff was exiting a store in the vicinity of 157th Street and Gerard Avenue, Bronx, New York.

17. While Plaintiff was walking down the sidewalk, he was confronted and assaulted by Defendants, including TORIBIO, DISIMONE and John or Jane Doe 1-10.

18. Defendants', including TORIBIO, DISIMONE and other unidentified officers, John or Jane Doe 1-10 struck Plaintiff in his face, with a hard object.
19. At no time did Plaintiff give Defendants, including TORIBIO, DISIMONE and John or Jane Doe 1-10 a reason to strike him with a hard object.
20. At no time prior to Plaintiff being struck with a hard object on his face, did Defendants, including TORIBIO, DISIMONE and John or Jane Doe 1-10 identify themselves as Police Officers.
21. At no time prior to Plaintiff being struck with a hard object on his face, did Defendants, including TORIBIO, DISIMONE and John or Jane Doe 1-10, observe Plaintiff committing a crime or violation of the law.
22. Plaintiff was searched and seized in an unlawful manner by Defendants, including TORIBIO, DISIMONE and other unidentified officers, John or Jane Doe 1-10, when they each physically grabbed Plaintiff's body and arms without probable cause and forced him to the ground.
23. While Plaintiff was on the ground, Defendants, including TORIBIO, DISIMONE and other unidentified officers, John or Jane Doe 1-10 proceeded to punch and kick Plaintiff about his body.
24. Defendants, including TORIBIO, DISIMONE and John or Jane Doe 1-10 had no probable cause or reasonable suspicion to arrest, detain or stop Plaintiff, as Plaintiff had not committed any crime or violation of the law.
25. Defendants, including TORIBIO, DISIMONE and John or Jane Doe 1-10 fabricated a false narrative, in which they claimed Plaintiff resisted attempts by Defendants to

place him under arrest, when they knew such claims to be untrue and complete fabrications.

26. Plaintiff had multiple assaults and batteries committed to his person including but not limited to being placed in handcuffs too tight, struck in the face with a hard object and being punched and kicked repeatedly about his body.
27. Defendants, including TORIBIO, DISIMONE and John or Jane Doe 1-10 suppressed evidence and engaged in conduct undertaken in bad faith, namely fabricating false accounts that Plaintiff resisted arrest.
28. Defendants, including TORIBIO, DISIMONE and John or Jane Doe 1-10 have displayed a pattern and practice of falsely accusing individuals of resisting arrest in cases where Defendants have used excessive and unreasonable force.
29. During all of the events described, the Defendants, including TORIBIO, DISIMONE and John or Jane Doe 1-10 acted maliciously and with intent to injure Plaintiff.
30. At all times relevant hereto, Defendants, including TORIBIO, DISIMONE and John or Jane Doe 1-10 engaged in fraud, perjury, the suppression of evidence and other actions conducted in bad faith, or failed to intervene when Defendants observed others doing so, all in furtherance of Plaintiff's being seriously injured.
31. As a direct and proximate result of the acts of Defendants, including TORIBIO, DISIMONE and John or Jane Doe 1-10, Plaintiff suffered the following injuries and damages: violations of his rights pursuant to the Fourth and Fourteenth Amendment of the United States Constitution, violations of New York State law, physical injury, physical pain and suffering, emotional trauma and suffering, including fear,

embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, loss of liberty and harm to reputation.

32. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

33. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FIRST CAUSE OF ACTION

Unlawful Search and Seizure Under
New York State Law

34. Plaintiff re-alleges and re-avers Paragraph 1 through 67 of this Complaint as if fully set forth herein.

35. Defendants subjected Plaintiff and his property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

36. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to his person and property.

37. Plaintiff did not consent to the unreasonable searches and seizures to his person or property.

38. The unreasonable searches and seizures to Plaintiff's person and property were not otherwise privileged.

39. Accordingly, Defendants violated Plaintiff's right to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the United States Constitution and Article I, Section 12, of the New York State Constitution.

40. Defendant City of New York, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

41. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SECOND CAUSE OF ACTION

Unlawful Search and Seizure Under
42 U.S.C. § 1983 Against Individual Defendants

42. Plaintiff re-alleges and re-avers Paragraph 1 through 75 of this Complaint as if fully set forth herein.

43. Defendants subjected Plaintiff and property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

44. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to his person and property.

45. Plaintiff did not consent to the unreasonable searches and seizures to his person or property.

46. The unreasonable searches and seizures to Plaintiff's person and property were not otherwise privileged.

47. Accordingly, Defendants violated Plaintiff's right to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the United States Constitution and Article I, Section 12, of the New York State Constitution.

48. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRD CAUSE OF ACTION

False Arrest and False Imprisonment Under
New York State Law

49. Plaintiff re-alleges and re-avers Paragraph 1 through 82 of this Complaint as if fully set forth herein.

50. Defendants subjected Plaintiff to false arrest, false imprisonment, and deprivation of liberty without probable cause.
51. Plaintiff was conscious of his confinement.
52. Plaintiff did not consent to his confinement.
53. Plaintiff's arrest and false imprisonment was not otherwise privileged.
54. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
55. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTH CAUSE OF ACTION

False Arrest and False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

56. Plaintiff re-alleges and re-avers Paragraphs 1 through 89 of this Complaint as if fully set forth herein.
57. The Defendants violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiff.
58. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.
59. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiff.
60. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FIFTH CAUSE OF ACTION

Assault and Battery Under
New York State Law

61. Plaintiff re-alleges and re-avers Paragraph 1 through 88 of this Complaint as if fully set forth herein.
62. Defendants made Plaintiff fear for his physical well-being and safety and placed his in apprehension of immediate harmful and/or offensive touching.
63. Defendants engaged in and subjected Plaintiff to immediate harmful and/or offensive touching and battered him without him consent.
64. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
65. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

SIXTH CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983 Against Individual Defendants

66. Plaintiff re-alleges and re-avers Paragraphs 1 through 99 of this Complaint as if fully set forth herein.
67. The Defendants violated Plaintiff's rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiff's consent.
68. Defendants engaged in and subjected Plaintiff to immediate harmful and/or offensive touching and battered him without his consent.
69. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

SEVENTH CAUSE OF ACTIONMalicious Prosecution Under
New York State Law

70. Plaintiff re-alleges and re-avers Paragraph 1 through 103 of this Complaint as if fully set forth herein.
71. Defendants initiated the prosecution against Plaintiff.
72. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.
73. Defendants acted with malice.
74. The prosecution was terminated in Plaintiff's favor when all criminal charges were dismissed and sealed.
75. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
76. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

EIGHTH CAUSE OF ACTIONMalicious Prosecution Under
42 U.S.C. § 1983 Against Individual Defendants

77. Plaintiff re-alleges and re-avers Paragraphs 1 through 110, of this Complaint as if fully set forth herein.
78. Defendants initiated the prosecution against Plaintiff.
79. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.
80. Defendants acted with malice.

81. The prosecution was terminated in Plaintiff's favor when all criminal charges were dismissed and sealed.

82. Accordingly, Defendants violated Plaintiff's Fourth Amendment rights.

83. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

NINTH CAUSE OF ACTION

Denial of Right to Fair Trial Under
New York State Law

84. Plaintiff re-alleges and re-avers Paragraphs 1 through 117 of this Complaint as if fully set forth herein.

85. Defendants fabricated false evidence to be used against Plaintiff that was likely to influence a jury's decision and forwarded said false information to the District Attorney's Office.

86. Defendants' actions deprived Plaintiff of his right to a fair trial and caused post-arraignment restrictions to be imposed on her liberty and freedom of movement.

87. Accordingly, Defendants violated Plaintiff's right to fair trial, pursuant to the Sixth and Fourteenth Amendments to United States Constitution, Article I, Sections 1, 2 and 6 of the New York State Constitution, as well Article II, Section 12, of the New York State Civil Rights Law.

88. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

89. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TENTH CAUSE OF ACTION

Denial of Right to Fair Trial Under

42 U.S.C. § 1983 Against Individual Defendants

90. Plaintiff re-alleges and re-avers Paragraphs 1 through 123 of this Complaint as if fully set forth herein.
91. Defendants fabricated false evidence to be used against Plaintiff that was likely to influence a jury's decision and forwarded said false information to the District Attorney's Office.
92. Defendants' actions deprived Plaintiff of his right to a fair trial and caused post-arraignment restrictions to be imposed on his liberty and freedom of movement, including his post-arraignment detainment.
93. Accordingly, Defendants violated Plaintiff's right to fair trial, pursuant to the Sixth and Fourteenth Amendments to United States Constitution, Article I, Sections 1, 2 and 6 of the New York State Constitution, as well Article II, Section 12, of the New York State Civil Rights Law.
94. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

ELEVENTH CAUSE OF ACTIONFailure to Intervene Under
New York State Law

95. Plaintiff re-alleges and re-avers Paragraphs 1 through 128 of this Complaint as if fully set forth herein.
96. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

97. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

98. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TWELFTH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

99. Plaintiff re-alleges and re-avers Paragraphs 1 through 132 of this Complaint as if fully set forth herein.

100. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

101. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.

102. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRTEENTH CAUSE OF ACTION

Malicious Abuse of Process Under
New York State Law

103. Plaintiff re-alleges and re-avers Paragraph 1 through 136 of this Complaint as if fully set forth herein.

104. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.

105. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.
106. Defendants intended to inflict substantial harm upon Plaintiff.
107. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.
108. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
109. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTEENTH CAUSE OF ACTION

Malicious Abuse of Process Under
42 U.S.C. § 1983 Against Individual Defendants

110. Plaintiff re-alleges and re-avers Paragraph 1 through 143 of this Complaint as if fully set forth herein.
111. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.
112. Defendants had no excuse or justification to forcibly detain and initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.
113. Defendants intended to inflict substantial harm upon Plaintiff.
114. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.

115. Defendants' actions deprived Plaintiff of his constitutional rights, under the Sixth and Fourteenth Amendments to the United States Constitution.

116. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FIFTEENTH CAUSE OF ACTION

Negligent Hiring, Training, Retention and Supervision Under
New York State Law

117. Plaintiff re-alleges and re-avers Paragraph 1 through 150 of this Complaint as if fully set forth herein.

118. Defendant City owed a duty of care to Plaintiff to adequately hire, train, retain and supervise its employee Defendants.

119. Defendant City breached those duties of care.

120. Defendant City placed Defendants in a position where they could inflict foreseeable harm.

121. Defendant City knew or should have known of its employee Defendants' propensity for violating the individual rights granted under the United States Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiff.

122. Defendant City failed to take reasonable measures in hiring, training, retaining and supervising its employee Defendants that would have prevented the aforesaid injuries to Plaintiff.

123. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SIXTEENTH CAUSE OF ACTION
Municipal “*Monell*” Liability Under
42 U.S.C. § 1983 Against Defendant City

124. Plaintiff re-alleges and re-avers Paragraph 1 through 157 of this Complaint as if fully set forth herein.
125. Defendant City maintained a policy or custom that caused Plaintiff to be deprived of his civil rights, tacitly approved of such violative conduct or was deliberately indifferent toward the potential exposure of individuals, such as Plaintiff, to such violative behavior.
126. Defendant City’s employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of.
127. Defendant City, its policymakers and supervisors failed to provide adequate training or supervision to their subordinates, to such an extent that is tantamount to the City’s deliberate indifference toward the rights of those who may come into contact with defendant City’s employees.
128. Defendant City’s employees engaged in such egregious and flagrant violations of Plaintiff’s Constitutional rights that the need for enhanced training or supervision is obvious and equates to a display of deliberate indifference by defendant City and its policymakers toward the rights of individuals, who may come into contact with defendant City’s employees.
129. Defendant City’s repeated refusal or failure to install or apply corrective or preventive measures constitutes the tacit approval of such violative behavior or a deliberate indifference to the rights of those who may be affected by such behavior.

130. Defendant City's conduct caused the violation of Plaintiff's civil rights enumerated within the Constitution of the United States, pursuant to the Fourth, Sixth and Fourteenth Amendments.

131. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

WHEREFORE, Plaintiff respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- m) On the Thirteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- n) On the Fourteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- o) On the Fifteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- p) On the Sixteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- q) Awarding Plaintiff punitive damages in an amount to be determined by a jury on all causes of action set forth herein;
- r) Awarding Plaintiff reasonable attorneys' fees and costs pursuant to 42 U.S.C. § 1988; Together with the costs and disbursements of this action.

JURY DEMAND

Plaintiff demands a trial by jury.

Dated: December 27, 2019

Respectfully submitted,

A handwritten signature in blue ink, appearing to read 'PS', is written over a horizontal line.

SIM & DEPAOLA, LLP

By: Peter Sim, Esq.

Attorneys for Plaintiff

42-40 Bell Blvd - Ste 201

Bayside, New York 11361

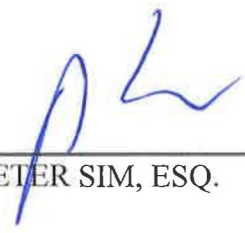
T: (718) 281-0400

F: (718) 631-2700

ATTORNEY VERIFICATION

I, Peter Sim, Esq, an attorney admitted to practice in the courts of New York State, state that I am an partner of the firm of **SIM & DEPAOLA, LLP**, the attorneys of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiff is because Plaintiff resides outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
December 27, 2019



PETER SIM, ESQ.

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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Plaintiff,

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capacities as Detectives, ROBERTO TORIBIO,
ANTHONY DISIMONE, and JOHN or JANE DOE 1-10,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

SIM & DEPAOLA, LLP

BY: PETER SIM

Attorney for Plaintiff

42-40 Bell Boulevard, Suite 201

Bayside, NY 11361

Tel. (718) 281-0400

To: CORPORATION COUNSEL OF NEW YORK

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.

Dated

Attorney(s) for